Indiana University Health

Privacy Impact Assessment

This form to collect information about the ways IU Health data will be used by third parties providing services to or contracting with any participant in the IU Health Affiliated Covered Entity (ACE). Once completed, the form should be returned to the Indiana University Health Information Security Office at ITRA@iuhealth.org. For assistance, please call 317-962-2828.

Section 1: General Information

1. Submitter: Michelle Flowers
2. Submitter Phone or Email: 850-324-6353
3. Entity Name: PeriGen Inc
   (*if applicable)*
4. Product/Service Name: PeriWatch Surveillance and Vigilance
   (*if applicable)*
5. Business Address: 100 Regency Forest Dr #200
   Cary, NC 27518
6. Business Phone: 984-208-4250
7. IU Health Contact Name and Phone/Email: (i.e. the person with whom you interface the most)
   Ryan Davis, IS Director, 317-922-8562, rdavis6@iuhealth.org

Section 2: Service and/or Product Information

8. What is the name of the agreement creating the business relationship?
   PERIGEN® SOFTWARE LICENSE AND SUPPORT AGREEMENT
9. What is the effective date or expected effective date of the contract? March 10, 2025
10. Please provide a short description of the service or product being provided:
    Fetal monitoring, surveillance, alerts, archiving and early-warning for OB care.

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11. Which types of IU Health data or information, if any, will be used, created, stored, transmitted, accessed, viewed, or disclosed? (*Check all that apply.*)

    ☐ N/A
    ☑ Protected Health Information (PHI)
    If you will access PHI but do not know which elements, then please list which IUH systems/applications will you be accessing – otherwise, please check below:
    _____

    ☑ Patient Name (First, Last, or Both)
    ☑ Patient Contact Information (Address, Phone, Fax, E-mail, Web URLs, IP addresses)
    ☑ Dates (Birth Date, Admission and/or Discharge Date(s))
    ☐ Social Security Numbers
    ☑ Medical Record Numbers
    ☐ Health Plan Beneficiary Numbers
    ☑ Account Numbers
    ☐ Certificate/License Numbers
    ☐ Vehicle Identifiers and Serial Numbers (incl. license plate numbers)
    ☐ Device Identifiers and Serial Numbers
    ☐ Biometric Identifiers, including finger and voice prints
    ☐ Full face photographic images and any comparable images
    ☐ Any other unique identifying characteristic, number, or code

    ☐ De-identified Data (as confirmed by IU Health's data steward)
    ☐ Employee Data
    ☐ Financial Data
    ☐ Health Plans Data
    ☐ Other: _____

12. Does this agreement qualify you/your business as a business associate? (See the decision tree on the last page of this document if you are not sure. If do not believe you are a business associate, but will have exposure to PHI, please explain why you do not qualify as a business associate.)

    ☑ Yes
    ☐ No – No use, creation, storage, transmission, access, viewing, or disclosure of PHI.
    ☐ No – Other reason:

_____

_____

**** If you are not a business associate, STOP HERE. You do not need to complete the remainder of the form.****

Section 3: Business Associate Information

13. Is there currently an active Business Associate Agreement?

    ☑ Yes (Effective Date of BAA: 2/15/2022)
    ☐ No

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14. Will you be transmitting or storing any IU Health data or information anywhere outside of IU Health?

    ☑ No
    ☐ Yes
    If yes, explain and provide specific locations:

    _____

    _____

15. Will the services or product be provided on-site at an IU Health facility, or remotely?

    ☑ On-site at Product is installed on-prem. Services will be a combination of on-prem and remote
    ☐ Remotely

16. How will your organization be accessing the IU Health data? (i.e. logging into IUH systems directly, receiving via e-mail or USPS, etc.)

    As a current service provider, PeriGen already has remote access via SecureLink.

    _____

    _____

17. Will your organization be doing any data aggregation or de-identification of IU Health data or information? If yes, for what purpose(s)?

    ☑ No
    ☐ Yes _____

18. Will your organization be using or disclosing PHI for any other purpose than for the services set forth in the agreement named above? If yes, please explain.

    ☑ No
    ☐ Yes _____

19. Does your organization require training annually or more regularly on any of the following topics? Choose all that apply:

☑ HIPAA Privacy and Security
☑ Phishing
☑ Social Media
☑ Business Associate Agreements
☑ Safeguards of PHI or Confidential Information

☐ Other: _____
☐ Other: _____
☐ Other: _____
☐ Other: _____
☐ Other: _____

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20. Does your organization carry insurance that would cover a privacy or security incident? Who is the carrier and what are the limits?

    Insurance Carrier: ACE American Insurance Company

    Limits: Per Claim/Per Occurrence $ 5,000,000 Aggregate $ 5,000,000

21. Will you contract with any subcontractors/third parties that may use or access IU Health's information or data? Please name those subcontractors/third parties.

    ☑ No
    ☐ Yes

    1. _____
    2. _____
    3. _____
    4. _____
    5. _____

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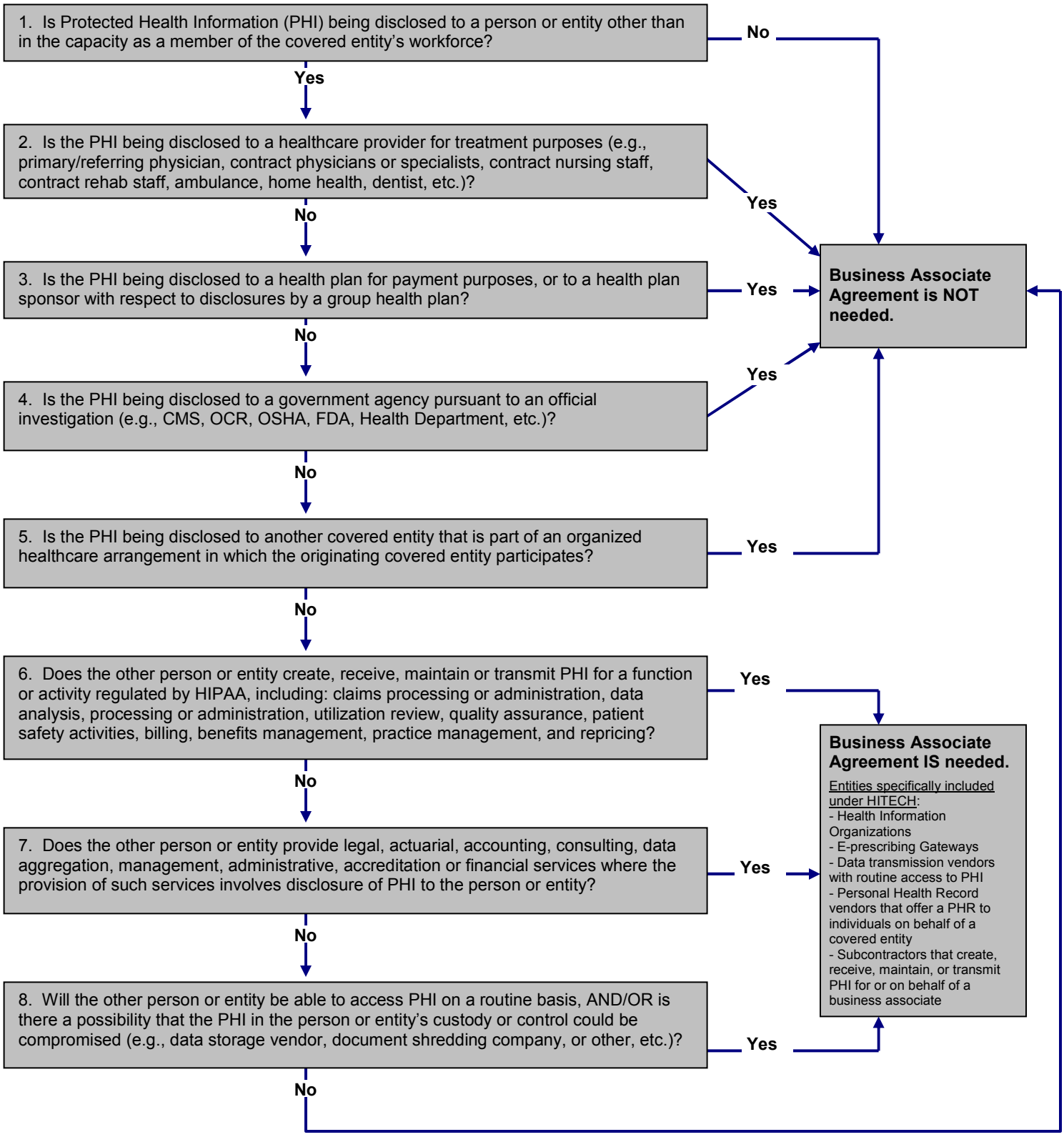
If you need a copy of the IU Health Affiliated Covered Entity Business Associate Agreement template, please contact the IU Health Privacy Office at hipaa@iuhealth.org or 317-963-1940.

IU Health Security Exhibits: https://iuhealth.org/about-our-system/vendor-relations

IU Health Notice of Privacy Practices: https://iuhealth.org/patient-family-support/privacy-policy

HIPAA/HITECH
Business Associate Decision Tree